

been the person who sent the document nor is any foundation laid for his knowing whether AMECO (a separate company) ever received the terms and conditions.

Because AMECO does not definitively show that it never received the terms and conditions, the Court cannot conclude that AMECO is entitled to judgment on this issue. However, it may be worth mentioning that, had AMECO successfully shifted the burden of production here, Norcal's purported dispute is also insufficiently supported by its evidence. Norcal offers its own allegations (§§15-6 of its cross-complaint) concerning an "implied in fact" contract allegedly arising from Norcal's "quote/offer and invoices" that "contained and incorporated written Terms and Conditions on the reverse side." But in opposing summary judgment, a "cross-complainant shall not rely upon the allegations [...] of its pleadings to show that a triable issue of material fact exists [...]" (Code Civ. Proc., § 437c (p)(2).) While Norcal also cites an excerpt from the Deposition of Patrick Michael Puccinelli, the cited testimony does not support that AMECO ever received Norcal's terms and conditions.

Still, the motion must be denied for AMECO's failure to shift the burden to Norcal. Further, AMECO's own responses to Norcal's Additional Material Facts assert many of the facts are "disputed." Such a designation concedes materiality and a dispute.

2. Issue No. 2: AMECO's Cause of Action for Declaratory Relief Against Norcal (Seventh Cause Of Action)

As a second "issue" on which AMECO seeks summary adjudication, AMECO asserts entitlement to judgment on its seventh cause of action for declaratory relief which states, in relevant part, that it is entitled to be fully indemnified by "cross-defendants" (which include Norcal) pursuant to their express written contracts with AMECO.

Norcal argues the procedural posture is grounds for denial. (See Norcal's Memorandum in Support of Opposition, 6:15-7:2.) The Court has already set forth why multiple pleadings cannot be determined in one motion such as the present motion.

Judgment on this "issue" would also be improper as the allegations at issue are integral to other causes of action asserted in AMECO's cross-complaint. A party may not obtain a summary adjudication of the declaratory relief cause of action while ignoring its effect as to the other substantive causes of actions. If it could, the result would fully subvert the restrictions of Code Civ. Proc., § 437c, subd. (f)(1). (*Hood v. Superior Court* (1995) 33 Cal.App.4th 319, 321 [the statute requires that summary adjudication completely dispose of the cause of action, affirmative defense, claim for damages, or issue of duty].)

Summary adjudication as to the second issue is denied.

3. Issue Nos. 3-5 Peterson's Cross-Complaint

AMECO argues that Peterson's causes of action fail, but does not attempt to separately argue them. Instead, it asserts that none have merit because, at least in part, "NorCal and Peterson both knew AMECO was going to re-rent the grader." This issue in dispute (see Additional Material Fact No. 1 and AMECO's Reply). Similarly, AMECO's own responses to other additional facts offered by Peterson label many of the facts as "disputed." Such a designation concedes materiality and a dispute.

The Court need not further explore the merits to the arguments against Peterson. Summary adjudication as to the third through fifth issues is denied.

24. 9:00 AM CASE NUMBER: C24-00136
CASE NAME: RONALD WEBSTER VS GREGORY BROOKS
*HEARING ON MOTION IN RE: NTC AND MOTION FOR RECONSIDERATION

TENTATIVE RULING:

As previously discussed, **parties to appear.**